

Court No. - 3

Case :- WRIT - C No. - 33178 of 2021

Petitioner :- Virendra Kumar Verma

Respondent :- Madhyanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Sanjay Singh, Shantanu

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner and learned counsel for the respondents.

2. This writ petition has been filed praying for the following reliefs:-

"i) issue a writ of Mandamus commanding the respondent no.2 to immediately provide appropriate fresh electricity connection and ensure the supply of electricity in the House of petitioner situated at Village Nawada Jogiyan, Pargana & Tehsil and District Bareilly.

ii) issue a writ of Mandamus commanding the respondents not to recover any previous arrear of electricity bills of prior to 10.06.2021 with regard to the House of the petitioner while granting fresh electricity connection."

3. Briefly stated facts of the present case are that the petitioner purchased a residential house measuring 40.36 sq. mts. from one Shri Brij Bhushan s/o Shri Dinesh Chandra by a registered sale-deed dated 06.01.2021. He applied for electricity connection. Thereafter, it came to his notice that there are some dues against the erstwhile consumer of the aforesaid house property and for that reason, the electricity connection, as applied by the petitioner, has not been granted by the respondents to the petitioner for the aforesaid house. Aggrieved, the petitioner has filed the present writ petition.

4. Learned counsel for the petitioner, on instructions, states that under compulsion and in view of the second proviso to Clause 4.1 read with Clause 4.3(f) of the U.P. Electricity Supply Code,

2005, the petitioner has deposited the amount and thereafter electricity connection has been granted to him.

5. In view of the aforesaid, the writ petition has become infructuous as the relief sought for by the petitioner has been granted to him. Consequently, it is **dismissed as infructuous**.

6. However, the petitioner shall be at liberty to sue the vendor of the property for recovery of the amount deposited by him, if the law and the contract of sale so permit.

Order Date :- 25.3.2022

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